

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.

**COMPLAINANT’S MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Visual Comfort & Co. (“VCC”) hereby moves, pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) and the January 17, 2024 Initial Order in this Proceeding (“Initial Order”), for confidential treatment of VCC’s Reply Brief in Support of its Claims Against COSCO Shipping Lines Co. Ltd. (“Reply Brief”) and VCC’s Responses to Respondent’s Proposed Findings of Fact (“CRRPFF”). VCC’s Appendix to its Reply Brief and Responses to RPFF (“Reply Appendix” or “CRX”) does not contain any confidential information, so it is not included in this motion.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial

information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). VCC filed its Reply Brief, Responses to RPFF and Reply Appendix on December 20, 2024. None of the documents submitted contained information that VCC has an interest in keeping confidential. However, VCC’s submission did contain information that Respondent COSCO Shipping Lines Co. Ltd. (“COSCO”) designated as Confidential pursuant to the parties’ Protective Order. Accordingly, VCC made proposed redactions to its Reply Brief and requested that COSCO advise as to what information it deems to be confidential and provide its reasoning therefor. COSCO has provided the following table identifying its proposed redactions to VCC’s Opening Brief, PFF, and Appendix, and its good cause for each:

Document Bates Number	DESCRIPTION	Classification Requested for	Reason(s) for Confidential Designation
CAppendix at CX 756, lines 12-22 CRRPFF at 110	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive terminal cost and services information.
CAppendix at CX760, lines 12-22 CRRPFF 126	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information on terminal costs, services, and practices.
RPFF at 18, 171, 232 and 237	Sample bills of lading	Material indicated	Commercially sensitive trade secret information.
RPFF at 188, 189, 217, 220, 221, 222 and 235	VCC047847 – VCC047849, VCC000011 –VCC000018 RIM & VCC Service Arrangements	Material indicated	Confidential and commercially sensitive contract information.
RPFF at 198 and 199	Rebuttal Expert Report of Daniel Hackett	Material indicated	Commercially sensitive trade secret information.
CX 760-761 (Takase Dep.) at 89:12- 90:11. CX1062-1063 (Takase Dep.) at 89:12-90:11.	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret information on terminal costs, services, and practices.

CRRPFF at 125, 126, 179, 180; Opposition Brief at 38 (cited erroneously in Respondent's Opposition Brief as CX750. Respondent will file an errata to correct this typographical error). Reply Brief at 2, 6.			
(CX741-744, 1036, 1041, 1043-46). Takase Dep. 24:18-25:22 Reply Brief at 15	Deposition Transcript of Tom Takase	Material indicated	Commercially sensitive and trade secret terms relating to strategies for pricing and service.

Pursuant to the Commission's Rules, VCC attaches to this motion the following exhibits:

- Exhibit A: Confidential Version of VCC's Reply Brief
- Exhibit B: Public Version of VCC's Reply Brief
- Exhibit C: Confidential Version of VCC's Responses to RPFF
- Exhibit D: Public Version of VCC's Responses to RPFF

For the foregoing reasons, VCC respectfully requests that the information identified above be kept confidential and that the Presiding Officer accept the confidential and public versions of VCC's Reply Brief and Responses to RPFF submitted herewith.

DATED: December 20, 2024

Respectfully submitted,
/s/ Jennifer M. Oliver
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CERTIFICATE OF SERVICE

I certify that on the 20th of December, a true and correct copy of the foregoing Motion for Confidential Treatment were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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